

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND**

**Index
Date Filed:**

BARRY LESANE

Plaintiff,

-against-

**CITY OF NEW YORK, NYPD
JOHN DOE # 1 and JOHN DOE # 2
NYPD Police Officers,
Individually and in their Official Capacities**

Defendant.

**Plaintiff Designates
Richmond County
as place of trial
The basis of venue is
Place of Accident**

Plaintiff resides at:

3400 Hewberry Lane
Raleigh N.C. 27610

SUMMONS

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney within twenty (20) days after the service of this summons, exclusive of the day of service, where service is made upon you personally within the state (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear and answer, judgment will be taken against you by default for the relief demanded in the annexed complaint.

Dated: December 23, 2013
Brooklyn, N.Y.


JOEL M. GLUCK

Attorney for Plaintiff
41 Schermerhorn Street
Brooklyn, N.Y. 11201
(718) 488-9141 Fax (718) 852-0185

Defendant(s):

Defendant's Address:
CITY of NEW YORK
Police Department
1 Centre Street
New York, N.Y. 10007

John Doe No.1 an Officer of the NYPD
Known to the Defendant City of New York
c/o NYPD
1 Police Plaza
New York, N.Y. 10007

John Doe No.2 an Officer of the NYPD
Known to the Defendant City of New York
c/o NYPD
1 Police Plaza
New York, N.Y. 10007

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND**

Index No.

Date Filed:

BARRY LESANE

Plaintiff,

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, and

NYPD and

POLICE OFFICER JOHN DOE # 1 and

POLICE OFFICER JOHN DOE # 2

NYPD Police Officers, Individually and in their Official Capacities

(NYC Case No. 2012 PI 032439 D/A 9/25/2012)

Defendants.

)

Plaintiff, complaining of the defendants herein, by and through his attorney,

JOEL M. GLUCK, Esq., respectfully alleges and shows this Court as follows:

1. That at all times mentioned herein, and most particularly 9/25/2012, the plaintiff, BARRY LESANE was and is a resident of the State of North Carolina and resides as of the commencement of this action at 3400 Hewberry Lane Raleigh North Carolina.

2. That at all times hereinafter mentioned, the defendant City of New York and NYPD (New York City Police Department) was a municipal corporation and an agency of that corporation organized under the laws of the State of New York.

3. That the defendant City of New York, operated controlled and maintained a municipal police force hereinafter NYPD with principal offices at One Police Plaza New York and undertook to hire, supervise, train and control police officers, most particularly those

identified in this complaint as officers John Doe No.1 and John Doe No.2, and said officers and employees act as Agents of the defendant City of New York for whose acts the City is liable

4. At all times relevant herein the defendant City of New York was operating under color of law.

5. That the defendant John Doe #1 at all times hereinafter mentioned and most particularly on 9/25/2012 was a member of the New York City Police Department and was assigned to a precinct in Richmond County and at all times relevant herein was acting in his official capacity and under color of state law

6. That at all times mentioned herein, most particularly 9/25/2012 the defendant John Doe #2 was a member of the New York City Police Department and assigned to a precinct in Richmond County and acting in his official capacity.

7. That on 9/25/2012 the Plaintiff was lawfully on the premises of 225 Parkhill Avenue Staten Island New York in Apartment 4C in the company of his wife Donna Lesane and step daughter Sade Hicks.

8. That the apartment at that address was lawfully rented by Sade Hicks who consented to the presence on the premises of her mother Donna Lesane and step father Barry Lesane.

9. That in the evening of 9/25/2012, Sade Hicks fell on the premises of Apartment 4c and sustained a dislocated shoulder. A male companion of Ms. Hicks, also on the premises of Apartment 4 C called 911 emergency number seeking medical assistance for Ms. Hicks.

10. Defendant officers John Doe #1 And John Doe #2 were dispatched to the residence and interviewed the occupants.

11 Defendants John Doe #1 and John Doe #2.thereafter, wrongfully and without

reasonable basis, probable cause or other legal grounds arrested the Plaintiff Barry Lesane for assault, domestic violence, resisting arrest; that at no time on the date of the occurrence or thereafter, were the defendant individual officers possessed of grounds for a lawful arrest.

12. All occupants of the premises of apartment 4 C thereupon advised the defendant Police Officers John Doe 1 and John Doe 2 that no assault had occurred, that there was no domestic violence or dispute; that Sade Hicks had simply fallen and dislocated her shoulder.

13. Plaintiff was restrained, arrested handcuffed on the premises, removed and taken in patrol car to precinct, to his shame embarrassment and emotional distress.

14. In the act of handcuffing the plaintiff, removing him from the premises and placing him in the defendants' officers assaulted the plaintiff, used excessive and unnecessary force, throwing him into the patrol car, injuring the plaintiff, despite being informed that plaintiff had prior injuries to his neck and back and uncontrolled diabetes, warranting use of minimal force and restraint; defendants pushed the plaintiff into the partition of the patrol car causing him to have injuries to his face, head, neck and back.; defendant's were negligent and/or willful in pushing the plaintiff into the car and acted with reckless and callous disregard as to his safety.

15. Plaintiff was arrested and taken to precinct and then to Central Booking in Richmond County. Plaintiff was detained more than one day causing loss of his liberty, violation of his civil rights, emotional pain and suffering and physical injury; that the Plaintiff was subjected to a body cavity search

16. That the Plaintiff and family members thereafter continued to advise the NYPD that there had been no assault, no domestic violence and that no member of the family had been struck by the Plaintiff. Notwithstanding the statements of family members the defendant

City of New York NYPD continued to confine the Plaintiff causing loss of his liberty and did not attend to his injuries.

17. That thereafter, upon information and belief, without appearance before a judge and presentment of charges, the Plaintiff was released and all charges dismissed by the Richmond County District Attorney.

18. That the Plaintiff suffered physical injuries, emotional distress, loss of liberty and violation of his civil rights.

19. Each and all of the Defendants' acts alleged herein were done by the Defendants, their agents, servants and employees, and each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the City, County and ~ State of New York, and under the authority of their office as police officers of said state, city and county.

20. That the arrest, restraint, assault, use of excessive force and loss of liberty was not consented to by the plaintiff and was done willfully, negligently and with reckless disregard for the injury to the Plaintiff.

I.
AS AND FOR A FIRST CAUSE OF ACTION:
CIVIL RIGHTS ACTION 42 USC 1983

21. The Plaintiff, hereby repeat, reiterate and re-allege each and every allegation contained in the preceding paragraphs with the same force and effect as if more fully and at length set forth herein.

22. That on about 9/25/2012 , **Plaintiff Barry Lesane** was lawfully

inside of an apartment building at 225 Parkhill Avenue Staten Island New York within an apartment rented to his stepdaughter Sade Hicks and present there with the latter's consent and in the presence of his wife and the tenant's mother Donna Lesane, hereinafter with absolutely no criminality afoot.

23. That on that date defendant Police Officers John Doe No. 1 and John Doe No. 2 were present at the above premises accompanying an ambulance called to provide medical assistance to Sade Hicks

24. That on about **9/25/2012 Plaintiff Lesane** was unarmed, unthreatening and unequivocally innocent of any crime, had not violated or breached any law, code, regulation, ordinance, statute or otherwise in effect on said date and time.

25. That on about 8/15/09 at the subject location, neither Police Officers had reasonable belief, reasonable suspicion or probable cause to believe that **Plaintiff Lesane** was armed, threatening, had violated or breached any law, code, regulation, ordinance, statute or otherwise in effect on said date and time, or had assaulted or threatened any member of that household.

26. That on about 9/25/2012 at the subject location **Defendant Police Officers** forcibly stopped, searched and seized **Plaintiff Lesane** without a warrant, consent, probable cause or other legal authority and accused, falsely charged and falsely arrested **Plaintiff Lesane** for having allegedly assaulted his step daughter, resisted arrest, engaged in disorderly conduct.

27. That the defendant Police Officers prevented the Plaintiff from leaving the premises, restrained him by the use of excessive force and the threat of deadly force, resulting in serious physical injuries to his person.

28. That on the above date, the plaintiff was removed from the subject premises and transported to the local precinct and thereafter to Central Booking, that defendant persisted in outrageous conduct, using excessive force, demeaning and insulting the plaintiff, wrongfully and maliciously prosecuting the plaintiff.

29. That on about 9/25/2012 defendants were deliberate in their actions and their omissions. As a consequence of the Defendants' conscious acts and deliberate omissions, in addition to the false charges, Plaintiff was falsely imprisoned, falsely arrested, maliciously prosecuted, assaulted and battered; that the defendants acted maliciously, recklessly, knowing that the plaintiff was innocent and that no criminal complaint or conduct constituting a violation of the Penal Code had been reported to them.

30. That the defendants falsely imprisoned the plaintiff caused a loss of his liberty and freedom, falsely arrested the plaintiff, intended to or were reckless as to the consequences of their action in causing bodily harm to the plaintiff; falsely imprisoned the plaintiff and said conduct was not privileged or supported by probable cause or legal grounds and was conducted under color of state statutes, ordinances acting under the color of statute, ordinances, regulations, customs, policy and usages of the City of New York, and under the authority of their office as police officers for said City,

31 **Plaintiff Lesane** did not commit any illegal acts, either before or at the time he was falsely imprisoned, falsely arrested, assaulted and battered, maliciously prosecuted, subjected to baseless searches, and deprived of his Constitutional rights as set forth in the Constitution of the United States, 42 USC 1983 and the Constitution of the State of New York, Article I, 512.

32 That **Plaintiff Lesane** was falsely imprisoned, falsely arrested, assaulted

and battered, maliciously prosecuted, subjected to baseless searches, as a direct result of the illegal actions and conduct of the Defendants, their agents, servants and employees acting under color of state law, resulting in loss of liberty, violation of his person without due process of law, and unreasonable restraint.

33. That as a result of the foregoing the Plaintiff has been injured in an amount to be determined by this Court.

**AS AND FOR A SECOND CAUSE OF ACTION:
FALSE ARREST AND IMPRISONMENT**

34. The Plaintiff, hereby repeat, reiterate and re-allege each and every allegation contained in the preceding paragraphs with the same force and effect as if more fully and at length set forth herein.

35. That on or about 9/25/2012, Plaintiff was lawfully on the subject premises, when defendants forcibly removed Plaintiff from the public street and held him against his will without probable cause, reasonable suspicion or a credible reason and thereafter falsely arrested and imprisoned him causing a loss of his liberty and person.

36. That the defendants did so without any privilege, rights or grounds resulting in serious physical injury to the Plaintiffs person and reputation and humiliation and shame in front of his family members

37. At all times the Plaintiff had not given his consent to confinement by the Defendants.

38. At all times the Plaintiff was conscious of his restraint, loss of liberty and abduction. At all times the Plaintiff was made to feel fearful, intimidated, demoralized, inferior and powerless by the Defendants' threats of deadly physical force.

39. That by reason of the foregoing the plaintiff has been injured in an amount to be determined by this court.

AS AND FOR A THIRD CAUSE OF ACTION FOR ASSAULT AND USE OF EXCESSIVE FORCE

40. The Plaintiff, hereby repeat, reiterate and re-allege each and every allegation contained in the preceding paragraphs with the same force and effect as if more fully and at length set forth herein.

41. That on the aforesaid date the defendants forcibly removed the Plaintiff from the subject premises, did willfully or with reckless disregard assault the plaintiff, push the plaintiff forcibly into the patrol car partition causing him physical injury and handcuff and restrain the plaintiff with excessive force causing injury.

42. That the defendants used excessive and unnecessary physical force and the threat of physical force in restraining the plaintiff and removing him from the premises where he was lawfully present use.

43. That the use of excessive force was willful deliberate or reckless and calculated to cause physical injury and fear and emotional distress.

44. That the plaintiff did not resist arrest despite the absence of lawful grounds for arrest and his restraint and the excessive and unnecessary force causing physical injury were unjustified and unwarranted and constituted an assault upon the plaintiff.

45. That as a result of the foregoing the Plaintiff has been injured in an amount to be determined by this Court.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF
OF PLAINTIFF NEGLIGENCE IN HIRING AND RETAINING**

46. The Plaintiff, hereby repeat, reiterate and re-allege each and every allegation contained in the preceding paragraphs with the same force and effect as if more fully and at length set forth herein

47. That the Defendants, The City Of New York through the NYPD and NYPD was careless and reckless in hiring and retaining as and for its employees, the above named individuals.

48. The Defendants, The City Of New York and NYPD knew or had reason to know that **Defendants John Doe 1 and John Doe 2**, lacked the experience, deportment and ability to be employed by the Defendants The City Of New **York** and NYPD.

49. Upon information and belief, the Defendants, The City Of New **York** and NYPD failed to exercise due care and caution in its hiring practices, and in particular, in hiring **the individual defendants**, who lacked the judgment and restraint and the ability to function as employees of the aforementioned The City Of New York and NYPD.

50. The Defendants, The City Of New York and NYPD, failed to investigate the above-named Defendants' background and in that they hired and retained as an employee of their

police department individuals whose backgrounds contained information (based on information and belief) that revealed said Defendants lacked the maturity, sensibility and restraint to be employed by the City.

51. The Defendants The City Of New **York** and NYPD knew or had reason to know of **the individual defendant's** lack of ability, experience, deportment and maturity when they hired them to be employees and, in that the Defendants, their agents, servants and employees were otherwise careless, negligent and reckless.

52. That as a result of the foregoing the plaintiff was injured in an amount to be determined by this Court.

**AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF:
NEGLIGENCE IN TRAINING AND
SUPERVISING**

53. The Plaintiff, hereby repeat, reiterate and re-allege each and every allegation contained in the preceding paragraphs with the same force and effect as if more fully and at length set forth herein,

54. That the defendant, The City Of New **York**, their agents, servants and employees, carelessly and recklessly failed to properly train and supervise their employees, in particular, the named Defendants, in that they failed to train their employees to control their tempers and exercise the proper deportment and temperament; and to otherwise act as representatives of their employer; and, in that the Defendants, their agents, servants and employees were otherwise reckless, careless and negligent.

55. That the aforesaid occurrence, to wit the false imprisonment, battery and loss of liberty were caused wholly and solely by reason of the negligence of the Defendants, its agents, servants and employees in hiring supervising and training without any negligence on the part of the Plaintiff.

**AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF:
INTENTIONAL AND NEGLIGENT INFLICTION OF
EMOTIONAL DISTRESS**

56. The Plaintiff, hereby repeat, reiterate and re-allege each and every allegation contained in the preceding paragraphs with the same force and effect as if more fully and at length set forth herein,

57. That on or about 9/25/2012, the defendants falsely imprisoned, wrongfully detained and assaulted and battered the Plaintiff. The Defendants imprisoned, detained, and assaulted the Plaintiff without any just right or grounds therefore knowing that Plaintiff did not commit any crimes.

58. The Defendants made **Plaintiff** to feel as if they had committed criminal activities that the Defendants knew or should have known were false but was done as a pretext to, inter alia, assault and batter the Plaintiff to cause him to suffer great indignities.

59. The Defendants' knowing, intentional and willful false accusations, false imprisonment, were baseless.

60. That by reason of the aforesaid unlawful imprisonment, false arrest and strip search the Plaintiff was: deprived of liberty, subjected to great indignity, pain, humiliation, great

distress of mind and body; projected to suffer Post Traumatic Stress Disorder; held **up** to scorn and ridicule; injured in his character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation in the community and the said Plaintiff have been otherwise damaged.

61. The aforesaid unlawful strip search, false arrest, false imprisonment constitute extreme and outrageous conduct carried out with the intent to cause, or disregard of a substantial probability of causing, severe emotional distress.

62. The aforesaid unlawful strip search and false imprisonment **was** extreme and outrageous conduct carried out with the intent to cause, or with reckless disregard of the likelihood of causing severe emotional distress disregarded the substantial probability of causing severe emotional distress that did in fact proximately and directly cause the Plaintiff severe emotional distress.

63. The aforesaid unlawful strip search, false imprisonment was so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency,

64. That by reason of the foregoing the Plaintiff has been injured in an amount to be determined by this Court.

65. That as a result of the aforesaid occurrence and the acts of the defendants, the plaintiff was rendered sick, sore, lame and disabled and suffered pain, and upon information and belief permanent injuries with accompanying pains as well as shock to his nervous system, suffered and continues to suffer emotionally psychological injury, was required and did receive medical treatment for her injuries and may in the future may so be required; was forced to expend various sums of money in an effort to cure himself and may in the future be so required;

was prevented from attending to his usual activities and may in the future be so prevented; and that he has as a result of the occurrence been incapacitated from the performance from her usual activities and has suffered disruption of his family and personal activities.

66. That prior to the commencement of this action and within ninety (90) days after the happening of the occurrence herein, a Notice of Claim was served upon the defendant, CITY OF NEW YORK by service on the Office of the Comptroller which affixed Claim No. **2012 PI 032439 D/A 9/25/2012**) to the Notice of Claim.

67. That more than thirty days (30) have elapsed since the service of said Notices of Claim and said defendants have failed, neglected and refused to adjust same; that the Plaintiff appeared for statutory hearing and testimony under oath before defendants under General Municipal Law 50 (h).

68.. That the plaintiff has duly complied with all statutory provisions and laws applicable to the defendant, and has duly and timely complied with all the conditions precedent to the making of this claim and the bringing of this action, and that this claim has been presented, and that this action has been commenced within the period of time prescribed and provided by statute of law.

69.. That this matter is timely commenced within the time prescribed by law; that less than one year and ninety (90) days have elapsed since the date of the accident alleged herein.

70.. Consequently, the plaintiff has been damaged in an amount to be determined by this Court.

71. That the Plaintiff's damages exceed the jurisdictional limit of all lower courts that would otherwise have jurisdiction of the matter herein.

WHEREFORE, plaintiff BARRY LESANE, demands judgment against the defendant CITY OF NEW YORK and NYPD and the individual defendants JOHN DOE No. 1 and JOHN DOE No. 2 on the First, Second, Third, Fourth, Fifth and Sixth causes of action in an amount to be determined by this Court together with the costs and disbursements of this action and where applicable by Law attorneys fees.

Dated: Brooklyn, New York
December 23, 2013



JOEL M. GLUCK
Attorney for Plaintiff
41 Schermerhorn Street
Brooklyn, N.Y. 11201
(718) 488-9141 Fax (718) 852-0185

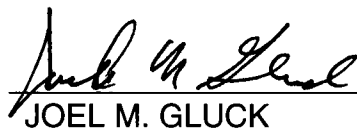
VERIFICATION

STATE OF NEW YORK)
 :
COUNTY OF KINGS)

The undersigned, an attorney duly admitted to practice in the courts of the State of New York, hereby affirms under the penalties of perjury:

Affirmant has read the foregoing Complaint and knows the contents thereof; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief, and as to those matters, deponent believes it to be true; and the reason this verification is made by the affirmant and not by the plaintiff is because the plaintiff is not within the county where affirmant has his office. The grounds for affirmant's knowledge are communications with the plaintiff and plaintiff's records which affirmant has reviewed.

Dated: Brooklyn, N.Y. 11201
December 23, 2013



JOEL M. GLUCK

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

Index No.

BARRY LESANE

Plaintiff,

-against-

**CITY OF NEW YORK, NYPD
JOHN DOE # 1 and JOHN DOE # 2
NYPD Police Officers,
Individually and in their Official Capacities**

Defendant.

SUMMONS AND VERIFIED COMPLAINT

LAW OFFICES OF JOEL M. GLUCK

Attorneys for Plaintiff(s)
41 Schermerhorn Street
Brooklyn, NY 11201
Telephone: 718-488-9141
Fax No. 718-852-0185

Pursuant to 22 NYCRR130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: Brooklyn, New York

December 23, 2013


Joel M. Gluck

PLEASE TAKE NOTICE:

[] NOTICE OF ENTRY

that the within is a true copy of an
200 .

duly entered in the office of the clerk of the within name court on

[] NOTICE OF SETTLEMENT

that the order of which the within is a true copy will be presented for settlement to the HON.
of the judges of the within named Court, at

on at 9:30 a.m.

one